

17. Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Rules, 1995

**ANNEXURE I**  
**SCHEDULE**  
**[See rule 12 (4)]**  
**NORMS FOR RELIF AMOUNT**

| <b>Sl. No.</b> | <b>Name of Offence</b>                                                  | <b>Minimum amount of Relief</b>                                                                                                                                                                                                        |
|----------------|-------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>1</b>       | <b>2</b>                                                                | <b>3</b>                                                                                                                                                                                                                               |
| 1.             | Drink or eat inedible or obnoxious substance [Section 3(1) (i)]         | Rs. 25,000 or more depending upon the nature and gravity of the offence to each victim and also commensurate with the indignity, insult, injury and defamation suffered by the victim.                                                 |
| 2.             | Causing injury, insulted annoyance [Section 3(1) (ii)]                  |                                                                                                                                                                                                                                        |
| 3.             | Derogatory act [Section 3(1) (iii)]                                     |                                                                                                                                                                                                                                        |
|                |                                                                         | Payment to be made as follows:-<br>I. 25% when the charge sheet is sent to the court.<br>II. 75% when accused are convicted by the lower court.                                                                                        |
| 4.             | Wrongful occupation or cultivation of land, etc. [Section 3(1) (iv)]    | At least Rs. 25,000 or more depending upon the nature and gravity of the offence. The land/premises/water supply shall be restored where necessary at Government cost. Full payment to be made when charge sheet is sent to the Court. |
| 5.             | Relating to land, premises and water [Section 3 (1) (v)]                |                                                                                                                                                                                                                                        |
| 6.             | Begar or forced or bonded labour [Section 3(1) (vi)]                    | At least Rs. 25,000 to each victim. Payment of 25% at FIR stage and 75% on conviction in the lower court.                                                                                                                              |
| 7.             | Relating to right to franchise [Section 3(1) (vii)]                     | Up to Rs. 20,000 to each victim depending upon the nature and gravity of the offence.                                                                                                                                                  |
| 8.             | False, malicious or vexatious legal proceedings. [Section 3 (1) (viii)] | Rs. 25,000 or reimbursement of actual legal expenses and damages or whichever is less after conclusion of the trial of the accused.                                                                                                    |
| 9.             | False and frivolous information [Section 3(1) (ix)]                     |                                                                                                                                                                                                                                        |
| 10.            | Insult, intimidation and humiliation [Section 3 (1) (x)]                | Upto Rs. 25,000 to each victim depending upon the nature of the offence. Payment of 25% when charge sheet is sent to the court and rest on conviction.                                                                                 |

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| 1   | 2                                                                                                                                                     | 3                                                                                                                                                                                                                      |
|-----|-------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 11. | Outraging the modesty of a women<br>[Section 3 (10 (xi))]                                                                                             | Rs. 50,000 to each victim of the offence, 50% of the amount may be paid after medical examination and remaining 50% at the conclusion of the trial.                                                                    |
| 12. | Sexual exploitation of women<br>[section 3(1) (xii)]                                                                                                  |                                                                                                                                                                                                                        |
| 13. | Fouling of water [section 3 (1) (xiii)]                                                                                                               | Up to Rs. 1,00,000 or full cost of restoration of normal facility, including cleaning when the water is fouled. Payment may be made at the stage as deemed fit by District Administration.                             |
| 14. | Denial of customary rights of passage<br>[section 3(1) (xiv)]                                                                                         | Up to Rs. 1,00,000 or full cost of restoration of right of passage and full compensation of the loss suffered, if any. Payment of 50% when charge-sheet is sent to the court and 50% on conviction is lower court.     |
| 15. | Making one desert place of residence<br>[Section 3(1) (xv)]                                                                                           | Restoration of the site right to stay and compensation of Rs. 25,000 to each victim and reconstruction of the house at Government cost, if destroyed. To be paid in full when charge sheet is sent to the lower Court. |
| 16. | Giving false evidence<br>[Section 3(2) (1) and (ii)]                                                                                                  | At least Rs. 1,00,000 or full compensation of the loss or harm sustained. 50% to be paid when charge-sheet is sent to Court and 50% on conviction by the lower Court.                                                  |
| 17. | Committing offences under the Indian Penal code punishable with imprisonment for a term of 10 years or more<br>[Section 3(2)]                         | At least Rs. 50,000 depending upon the nature and gravity of the offence to each victim and or his dependants. The amount would vary if specifically otherwise provided in the Schedule.                               |
| 18. | Victimization at the hands of a public servant [Section 3(2) (vii)]                                                                                   | Full compensation on account of damages or loss or harm sustained. 50% to be paid when charge-sheet is sent to the Court and 50% on conviction by lower Court.                                                         |
| 19. | Disability. The definitions of physical and mental disabilities are contained in the Ministry of Welfare, G.O.I. Notification No. 4-2/83-HW.III dated |                                                                                                                                                                                                                        |

6-8-1986 as amended from time to time. A copy of the notification is at Annexure-II.

19. Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Rules, 1995
- a) 100% incapacitation-
- (i) Non-earning Member of a family. At least Rs. 1,00,000 to each victim of offence. 50% on FIR and 25% at charge-sheet and 25% on conviction by the lower Court.
- (ii) Earning Member of a family At least Rs. 2,00,000 to each victim of offence, 50% to be paid on FIR/Medical examination stage. 25% when charge-sheet sent to Court and 25% at conviction in lower Court.
- b) Where incapacitation is less than 100% The rates as laid down in a (i) and (ii) above shall be reduced in the same proportion, the stages of payments also being the same. However, not less than Rs. 25,000 to non-earning member and not less than Rs. 30,000 to a existing member o a family.
20. Murder/Death:
- (a) Non-earning Member of a family At least Rs. 1,00,000 to each case. Payment of 75% after post-mortem and 25% on conviction by the lower Court.
- (b) Earning Member of a family At least Rs. 2,00,000 to each case. Payment of 75% after post-mortem and 25% on conviction by the lower Court.
21. Victim of murder, death, massacre, rape, mass rape and gang rape, permanent incapacitation and dacoity. In addition of relief amounts paid under above items, relief may be arranged within three months of date of atrocity as follows:-
- (i) Pension to each widow and/or other dependants of deceased, SC and ST @ Rs. 1,000 per month, or Employment to one member of the family of the deceased, or provision of agricultural land, and house, if necessary by outright purchase.
- (ii) Full cost of education and maintenance of the children of the

victims. Children may be admitted to Ashram. Schools/residential schools.

(iii) Provisions of utensils, rice, wheat, dals, pulses, etc. for a period of three months.

22. Complete destruction/burnt houses

Brick/stone masonry house to be constructed or provided at Government cost where it has been burnt or destroyed.

File No. 11012/1/89-PCR(Desk)

Ganga Das,  
Joint Secy.

Dated:

